

STATE OF NEW YORK

8820--B

2025-2026 Regular Sessions

IN ASSEMBLY

June 9, 2025

Introduced by M. of A. DAIS, SCHIAVONI -- read once and referred to the Committee on Economic Development -- recommitted to the Committee on Economic Development in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the state finance law, in relation to the usage of funds in the New York state cannabis revenue fund; and to amend the cannabis law, in relation to record keeping and tracking of cannabis

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (b) of subdivision 3 of section 99-ii of the
2 state finance law, as added by chapter 92 of the laws of 2021, is
3 amended to read as follows:

4 (b) Reasonable costs incurred by the office of cannabis management and
5 the cannabis control board for implementing, administering, and enforcing
6 the marihuana regulation and taxation act, including, but not limited to, the cost of implementing a track and trace program with a unique
7 package identifier. For purposes of this paragraph, the term "package"
8 shall mean a single regulatory identification number, whether represented by alphanumeric characters, symbols, a barcode, or a QR code,
9 applied to all line items on a shipping manifest. Further, for the
10 purposes of this paragraph, the term "line items" shall mean cases of
11 products, and shall expressly exclude any unique identifiers assigned to
12 the individual product units contained within such cases.

15 § 2. Section 78 of the cannabis law is amended to read as follows:

16 § 78. Record keeping and tracking. 1. The board shall, by regulation,
17 require each licensee pursuant to this article to adopt and maintain
18 security, tracking, record keeping, record retention and surveillance
19 systems, relating to all cannabis at every stage of acquiring,
20 possession, manufacture, sale, delivery, transporting, testing or

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 distributing by the licensee, subject to regulations of the board.
2 Notwithstanding any other provision of this chapter, the board shall not
3 require a licensee to track, record, or maintain data for individual
4 product units beyond a package level. For purposes of this subdivision,
5 the term "package" shall mean a single regulatory identification number,
6 whether represented by alphanumeric characters, symbols, a barcode, or a
7 QR code, applied to all line items on a shipping manifest. Further, for
8 the purposes of this subdivision, the term "line items" shall mean cases
9 of products, and shall expressly exclude any unique identifiers assigned
10 to the individual product item contained within such cases.

11 2. Every licensee shall keep and maintain upon the licensed premises,
12 adequate books and records of all transactions involving the licensee
13 and sale of its products with a unique package identifier, which shall
14 include, but is not limited to, all information required by any rules
15 promulgated by the board. Such regulations may require the utilization
16 of an approved seed-to-sale tracking system compiling a licensee's
17 cannabis inventory and transaction data. Compliance with the record
18 keeping requirements of this subdivision shall be deemed satisfied by
19 the maintenance of records at the package level and the board shall not
20 require licensees to utilize an additional unique identifier on each
21 individual item contained within such packages.

22 § 3. This act shall take effect immediately.